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UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION

KOSTIANTYN MARS

Removing Defendant / Movant,

vs.

THE PEOPLE OF THE STATE OF
CALIFORNIA,

Respondent.

) Case No.: B2402220
)
)

) **MOTION TO DISMISS CRIMINAL CASE**
) **B2402220**
) **(28 U.S.C. § 1441 et seq.; 42 U.S.C. § 1983;**
) **Fed. R. Civ. P. 81)**
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) **DATE:**
) **TIME:**
) **DEPT:**
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MOTION TO DISMISS CRIMINAL CASE B2402220
(28 U.S.C. § 1441 et seq.; 42 U.S.C. § 1983; Fed. R. Civ. P. 81)

Movant Kostiantyn Mars respectfully moves this Court to dismiss Santa Clara County Superior Court Criminal Case No. B2402220 with prejudice and to expunge all related warrants and records.

I. LEGAL BASIS

The criminal prosecution rests entirely on an alleged violation of a Domestic Violence Restraining Order dated November 28, 2023. That order is void ab initio under California Code of Civil Procedure § 170.4(d) because it was signed by disqualified Judge Andrea Flint after a timely Statement of Disqualification was filed on November 13, 2023.

A void order cannot support a criminal charge under Penal Code § 273.6. Consequently, the charging document fails to state a public offense (Penal Code § 1004). Dismissal is therefore warranted in the furtherance of justice (Penal Code § 1385) and to prevent further deprivation of Movant's federal constitutional rights (42 U.S.C. § 1983).

This Motion is supported by the Consolidated Evidence Binder - Exhibit A filed concurrently herewith, which contains the Statement of Disqualification, the void DVRO, the February 7, 2024 hearing transcript demonstrating extortion and threats of malicious prosecution, video evidence of the unlawful arrest and denial of hearings, and all other evidence establishing the legal defect and due process violations.

II. RELIEF REQUESTED

Movant respectfully requests that the Court:

1. **Dismiss** Criminal Case B2402220 with prejudice.
2. **Quash** and expunge all related warrants and records.
3. **Grant** such other and further relief as the Court deems just and proper.
4. In light of the documented pattern of racketeering and retaliation, threats of unlawful incarceration, and systemic corruption within the Santa Clara County Superior Court, Plaintiff respectfully requests that **any hearing** on the Emergency Motion for Temporary Restraining Order or the Motion to Dismiss Criminal Case B2402220 **be conducted remotely by video with mandatory audio and video recording** by the Court. This safeguard is necessary to protect Plaintiff's safety, prevent further violations of due process, and ensure independent federal oversight of the proceedings.

Respectfully submitted,

DATED: June 4, 2026


KOSTIANTYN MARS
Pro Se

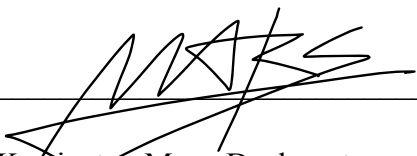
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7
8 **DECLARATION OF KOSTIANTYN MARS**
9 **(28 U.S.C. § 1746 / CCP § 2015.5)**

10 I, Kostiantyn Mars, declare under penalty of perjury under the laws of the United States that
11 the foregoing Motion is true and correct to the best of my knowledge and belief. The facts and
12 supporting evidence are contained in the Consolidated Evidence Binder - Exhibit A filed
13 concurrently herewith.

14 Executed on June 4, 2026 at Austin Texas.

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17 _____
18 Kostiantyn Mars, Declarant

KOSTIANTYN MARS) Case No.: B2402220
)
) (Santa Clara County Superior Court)
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Removing Defendant / Movant,)
)
)
vs.)
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THE PEOPLE OF THE STATE OF)
CALIFORNIA,)
)
Respondent.)

Came on for consideration Movant's Motion to Dismiss Criminal Case B2402220. Having reviewed the Motion, the Declaration of Kostiantyn Mars, Exhibit A (Evidence Binder), the Civil RICO Complaint, the Notice of Removal, and all other papers on file, the Court finds that good cause exists for the relief requested.

IT IS FURTHER ORDERED that all related warrants and enforcement orders, including but not limited to:

- are hereby **QUASHED and EXPUNGED** from all records.

1 **IT IS FURTHER ORDERED** that the State of California and all its agencies shall take all
2 necessary steps to **expunge any and all records related to the dismissed case** from
3 law-enforcement and court databases within fourteen (14) days of the date of this Order.

4 **IT IS FURTHER ORDERED** that **any hearing** on this Motion to Dismiss, or on any related
5 motion in this case, **shall be conducted remotely by video with mandatory audio and video**
6 **recording** by the Court. This safeguard is necessary to protect Plaintiff's safety, prevent further
7 violations of due process, and ensure independent federal oversight of the proceedings.
8

9 **SO ORDERED** this _____ day of _____, 2026.
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12 _____

13 UNITED STATES DISTRICT JUDGE

14 Western District of Texas
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